

25STCV11728 25STCV11728

County: los-angeles

Division: Civil Law and Motion

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Case Number: 25STCV11728 Hearing Date: September 23, 2026 Dept: 311

SUPERIOR

COURT OF CALIFORNIA, COUNTY OF LOS ANGELES

Civil

Division

Central

District, Stanley Mosk Courthouse, Department 311

Tentative

Ruling

25STCV11728

DEBORAH

CHRISTENSEN, et al. vs GENERAL MOTORS, LLC.

September

23, 2026

8:30

AM

NATURE OF PROCEEDINGS:

PLAINTIFFS' MOTION FOR RELIEF FROM DISMISSAL PURSUANT TO CODE OF CIVIL
PROCEDURE SECTION 473(b) [RE: DEFENDANT GENERAL MOTORS LLC'S DEMURRER TO
PLAINTIFFS' FIRST AMENDED COMPLAINT.]

RULING:

The Motion for Relief is granted.

The Court vacates and sets aside the Judgment filed February 5, 2026.

Plaintiff to give notice.

I.

BACKGROUND

On April 22, 2025, DEBORAH CHRISTENSEN and WAYNE CHRISTENSEN III (Plaintiffs) filed a Complaint against GENERAL MOTORS, LLC (Defendant), alleging Causes of Action under the Song-Beverly Consumer Warranty Act (Civ. Code §§ 1790-1795.8), and one claim for Fraud and Concealment.

Plaintiffs allege purchasing a 2018 Chevrolet Traverse that Defendant manufactured, which had and developed defects, including engine, transmission, and electrical. Plaintiffs further allege that Defendant failed to repair the vehicle within a reasonable number of attempts and refused to promptly replace it or to make restitution. Plaintiffs also allege the Fifth Cause of Action for Fraudulent Inducement – Concealment, regarding Defendant and its agents actively concealing and not disclosing the engine defect to Plaintiffs at the time of purchase and after.

On September 30, 2025, Defendant had filed an unopposed Demurrer to the FAC, based on the Statute of Limitations, Economic Loss Rule and pleading fraud elements.

On February 5, 2026, the Court filed the Judgment.

On August 4, 2026, Plaintiffs filed the Motion for Relief from Dismissal Pursuant to Code of Civil Procedure Section 473(b), based upon an attorney declaration admitting fault in failing to oppose the Demurrer.

Defendant filed an
Opposition, based on several grounds addressed below.

II.

LEGAL STANDARD

As

to mandatory relief, judges must vacate dismissals, default entries, and default judgments “whenever (1) an application is made no more than six months after entry of judgment, (2) the application is accompanied by an attorney’s sworn affidavit attesting to his or her mistake, inadvertence, surprise, or neglect, and (3) the attorney’s mistake, inadvertence, surprise or neglect in fact caused the dismissal or entry of default.” (*Benedict v. Danner Press* (2001) 87 Cal.App.4th 923, 927 [citing Code Civ. Proc., § 473, subd. (b)]). Accord, *Jimenez v. Chavez* (2023) 97 Cal.App.5th 50, 57.)

For

discretionary relief, a motion pursuant to Code of Civil Procedure section 473 must be made “within a reasonable time, in no case exceeding six months, after the judgment, dismissal, order, or proceeding was taken....” (*Zamora v. Clayborn Contracting Group, Inc.* (2002) 28 Cal.4th 249, 258 [quoting Code Civ. Proc., § 473, subd. (b)]). Code of Civil Procedure section 473, subdivision (b) provides: “The court may, upon any terms as may be just, relieve a party or his or her legal representative from a judgment, dismissal, order, or other proceeding taken against him or her through his or her mistake, inadvertence, surprise, or excusable neglect....”

Orders

denying relief under Code of Civil Procedure section 473 would be scrutinized on appeal more carefully than orders granting and enabling a resolution on the merits. (E.g., *Henderson v. Pacific Gas and Elec. Co.* (2010) 187 Cal.App.4th 215, 230.)

III.

ANALYSIS

Plaintiffs request relief

from the Judgment, and consideration of their Opposition attached to the Motion as Exhibit A, which request they base upon counsel’s declared admission of fault. In their Opposition to the Demurrer, Plaintiffs advocate overruling or alternatively leave to amend.

Defendant opposes relief, contending that (1) mandatory relief is unavailable where dismissal was on the merits, (2) discretionary relief is unavailable for inexcusable neglect, (3) six months' delay to file the Motion after the Judgment filing was unreasonable, and (4) a condition of counsel paying attorneys' fees and costs is mandatory. However, the opposing filings contain no evidence of any amount of attorneys' fees or costs to support any monetary award as a condition for mandatory relief.

To qualify for mandatory relief, an affidavit from an attorney must be a straightforward admission of fault. (State Farm Fire & Casualty Co. v. Pietak (2001) 90 Cal.App.4th 600, 609- 10.) "In order to qualify for [discretionary] relief under section 473, the moving party ... must submit affidavits or testimony demonstrating a reasonable cause for the default." (Huh v. Wang (2007) 158 Cal.App.4th 1406, 1419.) Where a ruling was the procedural equivalent of a default, not involving court consideration of factors, and resulted from counsel's admitted inexcusable conduct of failing to file an opposition, then the mandatory relief provision, based on attorney fault, applies. (Younessi v. Woolf (2016) 244 Cal.App.4th 1137, 1148.) Whenever relief is based upon an attorney's affidavit of fault, the court must order the attorney to pay reasonable legal fees and costs of the opposing side and may order penalties of up to \$1,000. (Solv-All v. Superior Court (2005) 131 Cal.App.4th 1003, 1009, fn.7 [citing Code Civ. Proc., § 473, subds. (b) and (c)].)

Here, Plaintiffs' counsel states a straightforward admission of fault at paragraph 6 of the Declaration attached to the Motion.

Further, the Court finds that the prior Demurrer ruling was not based upon the merits, but upon the lack of any Opposition. Any statement orally is not part of the Demurrer ruling. (See Opposition, 6:27 ("court informed Plaintiffs' counsel that even without any written opposition, it had considered the merits....").) A judge's order made orally but not filed in writing or entered in the minutes, is ineffective. (Collins v. Hertz Corp. (2006) 144 Cal.App.4th 64, 77-78 ["An oral . . . opinion by a trial judge, discussing and purporting to decide the issues, . . . is merely an informal statement...."]; In re Marriage of Drake (1997) 53 Cal.App.4th 1139, 1170; Code Civ. Proc., § 1003.) Furthermore, an Order referencing demurrer page numbers satisfies a

minimal statutory standard for statements of decision. Specifically, as to demurrer rulings, statements of decision may consist of references to appropriate page numbers and paragraphs, which requirement opposing parties may waive. Code Civ. Proc., §472d.

Because the Motion fully qualifies for mandatory relief, the Court need not reach the requirements of an alternative ground of discretionary relief.

IV.

CONCLUSION

The Court grants relief from the Judgment for the reasons set forth herein.